



WHEN DOES LIFE BEGIN?

THE DICKEY–WICKER AMENDMENT (1996)

IN CONTEXT

FOCUS

Family law

BEFORE

1976 In the US, The Hyde Amendment outlaws federal funding for abortions except in cases of medical emergency.

1978 Louise Brown, the first “test-tube baby,” is born in the UK; the potential of embryo research is clear.

1979 A federal Ethics Advisory Board recommends that embryo research is acceptable for the treatment of infertility; its advice is disregarded.

AFTER

2009 President Obama issues an executive order removing the restriction on federal funding of stem-cell research.

2011 The US Court of Appeals for the District of Columbia Circuit upholds Obama's order with reservations; the essential provisions of the Dickey–Wicker Amendment remain in force.

Since 1996, the Dickey–Wicker Amendment has prohibited the use of federal funding for the creation of human embryos for research purposes or for research in which human embryos are destroyed or injured. The bill, which is attached to US appropriations (government spending) bills, had already been approved by the House Committee on Appropriations in 1995, before it was put to the vote in Congress in 1996.

The Amendment—which never prohibited human-embryo research itself, only federal funding of such research—strikes at the heart of the ethical questions that similarly fuel the abortion debate. At what point can a human life be said to begin, and what laws should be in place to protect it? The work on human embryos that began in the 1970s opened up new horizons in medical science. It offered the possibility of conception for infertile couples, as well as the potential for pioneering treatments for serious diseases using stem cells. But the issue has always been controversial.



Congress often legislates without understanding the full scope of its enactments.

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In 2009, the Amendment was partially watered down by President Barack Obama, and in 2011, the Court of Appeals conceded that the Amendment was “ambiguous” and did not prohibit the funding of research that uses embryonic stem cells. Medical opinion is substantially opposed to the Amendment, claiming that vital research is being hampered by an obsolete law enacted by those unqualified to make such a decision. ■

See also: The Universal Declaration of Human Rights 222–229 ■ The European Convention on Human Rights 230–233 ■ *Roe v. Wade* 260–263